

Calendar Line 11

Case Name: *Tuumamao Esau Jr., II v. Tekberry, Inc.*

Case No.: 26CV486031

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

X. INTRODUCTION

This putative class and representative action was filed pursuant to an agreement between plaintiff Tuumaomao Esau Jr. II (“Plaintiff”) and defendant Tekberry, Inc. (“Defendant” or “Tekberry”).

On October 31, 2022, Plaintiff commenced a separate class action wage and hour action against Tekberry and Bloom Energy Corporation in Santa Clara County Superior Court bearing the case number, 22CV405682 (“*Esau I*”). (Declaration of Alexander G.L. Davies, ¶ 5.) While the parties were unable to reach settlement during June 2024 mediation with a mediator, they continued arms’ length negotiations and finalized settlement in December 2025. (*Id.* at ¶ 12.) The parties agreed that Plaintiff would dismiss Tekberry in *Esau I* and seek approval of settlement with Tekberry in this action. (*Id.* at ¶ 13.)

Plaintiff filed the operative Complaint in this action on February 3, 2026. The Complaint alleges the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to reimburse business expenses; (6) failure to provide accurate itemized wage statements; (7) failure to pay wages timely during employment; (8) failure to pay all wages due upon separation of employment; (9) violation of Business and Professions Code §§ 17200, *et seq.*; and (10) enforcement of Labor Code §§ 2698 *et seq.* (“PAGA”).

Plaintiff now seeks an order: granting preliminary approval of class action settlement agreement; conditionally certifying the proposed class for settlement purposes; appointing Plaintiff as class representative; appointing Plaintiff as class representative; appointing Aegis Law Firm, PC as class counsel; appointing ILYM Group, Inc. as settlement administrator and